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State lawmakers pass bill prohibiting certain food chemicals

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California lawmakers will not ban an ingredient in Skittles, after all. But they will send Gov. Gavin Newsom a bill forbidding certain chemicals in other candies and foods.

The Legislature on Tuesday passed Assembly Bill 418 from Assemblyman Jesse Gabriel, D-Woodland Hills, which would prohibit any food products containing brominated vegetable oil, potassium bromate, propylparaben or red dye No. 3.

The bill also originally banned titanium dioxide, which is used in Skittles and other foods to make their colors appear brighter. This led to the bill being dubbed the "Skittles ban," even though the measure actually prohibited an ingredient in the candy, not the product, itself.

Gabriel and coauthor Assemblywoman Buffy Wicks, D-Oakland, wanted to push United States food manufacturers to remove certain chemicals that are already banned in other places, including the European Union, Japan and South Korea.

They cited links to elevated cancer risks, child behavioral concerns and other health issues.

Gabriel took out the provision that would have affected titanium dioxide in order to achieve strong bipartisan support and send a message that "we need much stronger action from Washington, D.C., on food safety," he said.

Even so, his Assembly colleagues waved packets of Skittles ahead of a Tuesday vote to approve Senate amendments.

"When Washington fails to act, California is going to step up and lead on these issues," Gabriel said after the Assembly floor vote on Tuesday.

Gabriel stressed the measure is not meant to ban any specific food products, but rather to ask companies to make some "minor modifications" and use the same safer alternatives used in the 27 other countries that already have outlawed the chemicals.

As a father of three young boys, Gabriel said he was appalled to learn from advocates that the U.S. Food and Drug Administration that the vast majority of food products do not have any "meaningful independent review."

"I just assumed that there was somebody in D.C. watching my back," he said. "As soon as I became aware that that was in fact not the case - and that we were in a much different position than the rest of the world - it became clear to me that we needed to do something about it."

AB 418 now goes to Newsom, who must sign or veto bills by Oct. 14.

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